

CVC AND CBI

SANTHANAM TRAJECTORY AND THE → CVC COMPOSITION, APPOINTMENT AND → CVC REMOVAL, SERVICE SAFEGUARDS → CVC SECTION 8 VIGILANCE → CVO NETWORK, ADVICE AND → CBI ORGANISATION, DSPE POWERS

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g6 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 SANTHANAM TRAJECTORY AND THE CVC-CBI-DSPE LEGAL IDENTITY MAP

SANTHANAM TRAJECTORY AND THE CVC-CBI-DSPE LEGAL IDENTITY MAP ROOT QUESTION HOW SHOULD VIGILANCE SUPERVISION, POLICE INVESTIGATION AND FINAL ADJUDICATION 1941 SPECIAL POLICE ESTABLISHMENT DSPE ACT, 1946 CBI RESOLUTION, 1 APRIL 1963

CVC RESOLUTION, 1964 AFTER SANTHANAM COMMITTEE VINEET NARAIN V. UNION OF INDIA (1997) SAFEGUARDS



CONSTITUTIONAL BASIS / ARTICLE

- ROOT QUESTION
- How should vigilance supervision, police investigation and final adjudication be separated?
- 1941 Special Police Establishment → DSPE Act, 1946

POWER / PROCEDURE

- CBI resolution, 1 April 1963
- CVC resolution, 1964 after Santhanam Committee
- Vineet Narain v. Union of India (1997) safeguards → CVC Act, 2003.

CHECK / LIMIT

- LEGAL IDENTITY
- CVC → statutory commission under CVC Act.
- CBI → executive-created organisation.

FEDERAL / RIGHTS IMPACT

- DSPE → statutory police establishment supplying core investigative powers.
- LIMIT common anti-corruption purpose does not merge advice, police power, prosecution and judgment.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT common anti-corruption purpose does not merge advice, police power, prosecution and judgment.

01

STAGE 01 CVC COMPOSITION, APPOINTMENT AND TENURE

CVC COMPOSITION, APPOINTMENT AND TENURE CENTRAL VIGILANCE COMMISSIONER AS CHAIRPERSON NOT MORE THAN TWO PRESIDENT BY WARRANT AFTER COMMITTEE RECOMMENDATION PRIME MINISTER + UNION HOME MINISTER + LOK SABHA

QUALIFICATION EXPERIENCE IN VIGILANCE, POLICY, ADMINISTRATION, POLICE ADMINISTRATION, FINANCE



CONSTITUTIONAL BASIS / ARTICLE

- Central Vigilance Commissioner as Chairperson not more than two Vigilance Commissioners.
- President by warrant after committee recommendation

POWER / PROCEDURE

- Prime Minister + Union Home Minister + Lok Sabha Opposition Leader/substitute.
- QUALIFICATION experience in vigilance, policy, administration, police administration, finance including insurance and banking, law or investigations.

CHECK / LIMIT

- Central Vigilance Commissioner as Chairperson not more than two Vigilance Commissioners.
- President by warrant after committee recommendation

FEDERAL / RIGHTS IMPACT

- Prime Minister + Union Home Minister + Lok Sabha Opposition Leader/substitute.
- QUALIFICATION experience in vigilance, policy, administration, police administration, finance including insurance and banking, law or investigations.

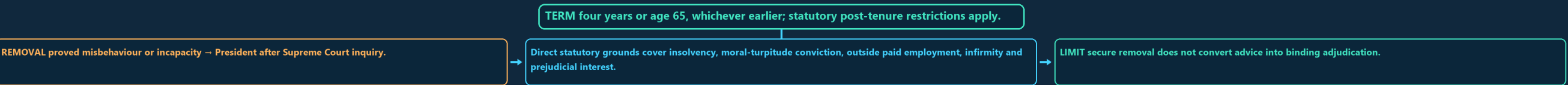
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: QUALIFICATION experience in vigilance, policy, administration, police administration, finance including insurance and banking, law or investigations.

02

STAGE 02 CVC REMOVAL, SERVICE SAFEGUARDS AND LEGAL LIMITS

CVC REMOVAL, SERVICE SAFEGUARDS AND LEGAL LIMITS TERM FOUR YEARS OR AGE 65, WHICHEVER EARLIER; STATUTORY REMOVAL PROVED MISBEHAVIOUR OR INCAPACITY PRESIDENT AFTER SUPREME COURT INQUIRY.

DIRECT STATUTORY GROUNDS COVER INSOLVENCY, MORAL-TURPIDITY CONVICTION, OUTSIDE PAID LIMIT SECURE REMOVAL DOES NOT CONVERT ADVICE INTO BINDING



CONSTITUTIONAL BASIS / ARTICLE

- TERM four years or age 65, whichever earlier; statutory post-tenure restrictions apply.
- REMOVAL proved misbehaviour or incapacity → President after Supreme Court inquiry.

POWER / PROCEDURE

- Direct statutory grounds cover insolvency, moral-turpitude conviction, outside paid employment, infirmity and prejudicial interest.
- LIMIT secure removal does not convert advice into binding adjudication.

CHECK / LIMIT

- TERM four years or age 65, whichever earlier; statutory post-tenure restrictions apply.
- REMOVAL proved misbehaviour or incapacity → President after Supreme Court inquiry.

FEDERAL / RIGHTS IMPACT

- Direct statutory grounds cover insolvency, moral-turpitude conviction, outside paid employment, infirmity and prejudicial interest.
- LIMIT secure removal does not convert advice into binding adjudication.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT secure removal does not convert advice into binding adjudication.

02

STAGE 02 CVC REMOVAL, SERVICE SAFEGUARDS AND LEGAL LIMITS

CVC REMOVAL, SERVICE SAFEGUARDS AND LEGAL LIMITS

TERM FOUR YEARS OR AGE 65, WHICHEVER EARLIER; STATUTORY

REMOVAL PROVED MISBEHAVIOUR OR INCAPACITY

PRESIDENT AFTER SUPREME COURT INQUIRY.

DIRECT STATUTORY GROUNDS COVER INSOLVENCY, MORAL-TURPITUDE CONVICTION, OUTSIDE PAID

LIMIT SECURE REMOVAL DOES NOT CONVERT ADVICE INTO BINDING

TERM four years or age 65, whichever earlier; statutory post-tenure restrictions apply.

REMOVAL proved misbehaviour or incapacity → President after Supreme Court inquiry.

Direct statutory grounds cover insolvency, moral-turpitude conviction, outside paid employment, infirmity and prejudicial interest.

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CONSTITUTIONAL BASIS / ARTICLE

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POWER / PROCEDURE

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FEDERAL / RIGHTS IMPACT

- Direct statutory grounds cover insolvency, moral-turpitude conviction, outside paid employment, infirmity and prejudicial interest.
- LIMIT secure removal does not convert advice into binding adjudication.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT secure removal does not convert advice into binding adjudication.

03

STAGE 03 CVC SECTION 8 VIGILANCE AND CBI SUPERVISION

CVC SECTION 8 VIGILANCE AND CBI SUPERVISION

CVC FUNCTIONS SUPERINTEND DSPE INVESTIGATION OF SPECIFIED PREVENTION OF

CVO CHAIN PREVENTION

SURVEILLANCE AND COMPLAINT SCRUTINY

DEPARTMENTAL INQUIRY

CVC ADVICE WHERE APPLICABLE

DISCIPLINARY AUTHORITY REASONED DECISION.

CONSTITUTIONAL BASIS / ARTICLE

- CVC FUNCTIONS superintend DSPE investigation of specified Prevention of Corruption Act matters issue directions without
- dictating disposal of a particular case review investigation progress and prosecution-sanction applications inquire or cause

POWER / PROCEDURE

- inquiry into covered public-servant complaints advise Central Government and covered organisations exercise vigilance-administration superintendence.
- CVO CHAIN prevention → surveillance and complaint scrutiny → departmental inquiry

CHECK / LIMIT

- CVC advice where applicable → disciplinary authority reasoned decision.
- CVC FUNCTIONS superintend DSPE investigation of specified Prevention of Corruption Act matters issue directions without

FEDERAL / RIGHTS IMPACT

- dictating disposal of a particular case review investigation progress and prosecution-sanction applications inquire or cause
- inquiry into covered public-servant complaints advise Central Government and covered organisations exercise vigilance-administration superintendence.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CVC advice where applicable → disciplinary authority reasoned decision.

04

STAGE 04 CVO NETWORK, ADVICE AND PROSECUTION-SANCTION MONITORING

CVO NETWORK, ADVICE AND PROSECUTION-SANCTION MONITORING

PROSECUTION SANCTION SECTION 19 PC ACT CONCERNS PROSECUTION STAGE

SECTION 17A PRIOR APPROVAL CONCERNS SPECIFIED INQUIRY/INVESTIGATION DECISIONS.

CVC IS NOT A POLICE STATION, TRIAL COURT OR

CONSTITUTIONAL BASIS / ARTICLE

- PROSECUTION SANCTION section 19 PC Act concerns prosecution stage
- section 17A prior approval concerns specified inquiry/investigation decisions.

POWER / PROCEDURE

- CVC is not a police station, trial court or universal controller of every CBI case.
- PROSECUTION SANCTION section 19 PC Act concerns prosecution stage

CHECK / LIMIT

- section 17A prior approval concerns specified inquiry/investigation decisions.
- CVC is not a police station, trial court or universal controller of every CBI case.

FEDERAL / RIGHTS IMPACT

- PROSECUTION SANCTION section 19 PC Act concerns prosecution stage
- section 17A prior approval concerns specified inquiry/investigation decisions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CVC is not a police station, trial court or universal controller of every CBI case.

05

STAGE 05 CBI ORGANISATION, DSPE POWERS, NOTIFIED OFFENCES AND MANDATE BOUNDARIES

CBI ORGANISATION, DSPE POWERS, NOTIFIED OFFENCES AND MANDATE BOUNDARIES

CBI ORGANISATION INVESTIGATION AND ANTI-CORRUPTION

ECONOMIC OFFENCES

SPECIAL CRIMES POLICY, ADMINISTRATION, FORENSICS AND INTERNATIONAL COOPERATION.

DSPE ACT SECTION 2

UNION TERRITORY POLICE-ESTABLISHMENT BASELINE.

SECTION 3

CENTRAL NOTIFICATION SPECIFIES OFFENCE CLASSES.

CBI ORGANISATION investigation and anti-corruption

economic offences

special crimes policy, administration, forensics and international cooperation.

DSPE ACT section 2 — Union Territory police-establishment baseline.

CONSTITUTIONAL BASIS / ARTICLE

- CBI ORGANISATION investigation and anti-corruption
- economic offences
- special crimes policy, administration, forensics and international cooperation.

POWER / PROCEDURE

- DSPE ACT section 2 → Union Territory police-establishment baseline.
- section 3 → Central notification specifies offence classes.
- section 5 → Central extension of powers to State areas.

CHECK / LIMIT

- section 6 → State consent for ordinary exercise in State area.
- POLICE POWER
- FIR or regular case → search, seizure, arrest and examination under law

FEDERAL / RIGHTS IMPACT

- evidence assessment → closure report or charge sheet → court.
- BOUNDARY organisational mandate does not override notified offences, territory, criminal procedure, special statutes, consent or court directions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: BOUNDARY organisational mandate does not override notified offences, territory, criminal procedure, special statutes, consent or court directions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CVC is not a police station, trial court or universal controller of every CBI case.

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CBI ORGANISATION INVESTIGATION AND ANTI-CORRUPTION

ECONOMIC OFFENCES

SPECIAL CRIMES POLICY, ADMINISTRATION, FORENSICS AND INTERNATIONAL COOPERATION.

DSPE ACT SECTION 2

UNION TERRITORY POLICE-ESTABLISHMENT BASELINE.

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CONSTITUTIONAL BASIS / ARTICLE

- CBI ORGANISATION investigation and anti-corruption
- economic offences
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POWER / PROCEDURE

- DSPE ACT section 2 — Union Territory police-establishment baseline.
- section 3 — Central notification specifies offence classes.
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CHECK / LIMIT

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06

STAGE 06 CBI SUPERINTENDENCE AND INVESTIGATIVE JUDGMENT

CBI SUPERINTENDENCE AND INVESTIGATIVE JUDGMENT

CVC FOR DSPE INVESTIGATION OF SPECIFIED CORRUPTION OFFENCES.

CENTRAL GOVERNMENT FOR OTHER DSPE MATTERS.

DIRECTOR CONTROLS DAY-TO-DAY ADMINISTRATION AND INVESTIGATIVE JUDGMENT, SUBJECT TO

DIRECTOR APPOINTMENT

CENTRAL GOVERNMENT APPOINTS ON COMMITTEE RECOMMENDATION

PRIME MINISTER + LOK SABHA OPPOSITION LEADER/SUBSTITUTE + CJI

CVC for DSPE investigation of specified corruption offences.

Central Government for other DSPE matters.

Director controls day-to-day administration and investigative judgment, subject to statute, law and lawful oversight.

DIRECTOR APPOINTMENT

CONSTITUTIONAL BASIS / ARTICLE

- CVC for DSPE investigation of specified corruption offences.
- Central Government for other DSPE matters.

POWER / PROCEDURE

- Director controls day-to-day administration and investigative judgment, subject to statute, law and lawful oversight.
- DIRECTOR APPOINTMENT

CHECK / LIMIT

- Central Government appoints on committee recommendation
- Prime Minister + Lok Sabha Opposition Leader/substitute + CJI or nominee.

FEDERAL / RIGHTS IMPACT

- CVC for DSPE investigation of specified corruption offences.
- Central Government for other DSPE matters.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Prime Minister + Lok Sabha Opposition Leader/substitute + CJI or nominee.

07

STAGE 07 CBI DIRECTOR APPOINTMENT, TENURE AND TRANSFER SAFEGUARDS

CBI DIRECTOR APPOINTMENT, TENURE AND TRANSFER SAFEGUARDS

TENURE MINIMUM TWO YEARS UNDER DSPE ACT.

CURRENT LAW PERMITS CONDITIONAL ONE-YEAR EXTENSIONS, WITH RECORDED PUBLIC-INTEREST

TRANSFER STATUTORY COMMITTEE SAFEGUARD APPLIES.

TRAP TWO-YEAR FLOOR

AUTOMATIC FIVE-YEAR TERM AND SUPERINTENDENCE

CASE-OUTCOME COMMAND.

CONSTITUTIONAL BASIS / ARTICLE

- TENURE minimum two years under DSPE Act.
- Current law permits conditional one-year extensions, with recorded public-interest reasons, up to aggregate five years.

POWER / PROCEDURE

- TRANSFER statutory committee safeguard applies.
- TRAP two-year floor != automatic five-year term and superintendence != case-outcome command.

CHECK / LIMIT

- TENURE minimum two years under DSPE Act.
- Current law permits conditional one-year extensions, with recorded public-interest reasons, up to aggregate five years.

FEDERAL / RIGHTS IMPACT

- TRANSFER statutory committee safeguard applies.
- TRAP two-year floor != automatic five-year term and superintendence != case-outcome command.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP two-year floor != automatic five-year term and superintendence != case-outcome command.

08

STAGE 08 STATE CONSENT, PENDING INVESTIGATIONS AND CONSTITUTIONAL-COURT DIRECTIONS

STATE CONSENT, PENDING INVESTIGATIONS AND CONSTITUTIONAL-COURT DIRECTIONS

ORDINARY STATE-AREA ROUTE SECTION 5 EXTENSION + SECTION 6

WITHDRAWAL OF GENERAL CONSENT OPERATES PROSPECTIVELY FOR NEW ORDINARY

KAZI LHENDUP DORJI V. CBI (1994) LATER WITHDRAWAL DID

STATE OF WEST BENGAL V. COMMITTEE FOR PROTECTION OF

HIGH COURT UNDER ARTICLE 226 AND SUPREME COURT UNDER

FERTICO MARKETING AND INVESTMENT PVT. LTD. V. CBI (2020)

STATE OF WEST BENGAL V. UNION OF INDIA (2024)

ORDINARY STATE-AREA ROUTE section 5 extension + section 6 general or case-specific State consent.

Withdrawal of general consent operates prospectively for new ordinary entries.

Kazi Lhendup Dorji v. CBI (1994) later withdrawal did not terminate investigations validly begun while

State of West Bengal v. Committee for Protection of Democratic Rights (2010)

CBI DIRECTOR APPOINTMENT, TENURE AND TRANSFER SAFEGUARDS

TENURE MINIMUM TWO YEARS UNDER DSPE ACT.

CURRENT LAW PERMITS CONDITIONAL ONE-YEAR EXTENSIONS, WITH RECORDED PUBLIC-INTEREST

TRANSFER STATUTORY COMMITTEE SAFEGUARD APPLIES.

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CONSTITUTIONAL BASIS / ARTICLE

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POWER / PROCEDURE

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CHECK / LIMIT

- TENURE minimum two years under DSPE Act.
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FEDERAL / RIGHTS IMPACT

- TRANSFER statutory committee safeguard applies.
- TRAP two-year floor != automatic five-year term and superintendence != case-outcome command.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP two-year floor != automatic five-year term and superintendence != case-outcome command.

08

STAGE 08

STATE CONSENT, PENDING INVESTIGATIONS AND CONSTITUTIONAL-COURT DIRECTIONS

STATE CONSENT, PENDING INVESTIGATIONS AND CONSTITUTIONAL-COURT DIRECTIONS

ORDINARY STATE-AREA ROUTE SECTION 5 EXTENSION + SECTION 6

WITHDRAWAL OF GENERAL CONSENT OPERATES PROSPECTIVELY FOR NEW ORDINARY

KAZI LHENDUP DORJI V. CBI (1994) LATER WITHDRAWAL DID

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State of West Bengal v. Committee for Protection of Democratic Rights (2010)

CONSTITUTIONAL BASIS / ARTICLE

- ORDINARY STATE-AREA ROUTE section 5 extension + section 6 general or case-specific State consent.
- Withdrawal of general consent operates prospectively for new ordinary entries.

POWER / PROCEDURE

- Kazi Lhendup Dorji v. CBI (1994) later withdrawal did not terminate investigations validly begun while consent operated.
- State of West Bengal v. Committee for Protection of Democratic Rights (2010)

CHECK / LIMIT

- High Court under Article 226 and Supreme Court under Article 32 may direct CBI investigation without State consent, exceptionally and cautiously.
- Fertico Marketing and Investment Pvt. Ltd. v. CBI (2020) fact-specific consent result; no universal rule that later consent always cures defect.

FEDERAL / RIGHTS IMPACT

- State of West Bengal v. Union of India (2024) preliminary maintainability objection rejected; cited judgment did not decide consent merits.
- FEDERAL VERDICT qualified State control in ordinary cases + exceptional rights-protecting judicial review.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: FEDERAL VERDICT qualified State control in ordinary cases + exceptional rights-protecting judicial review.

09

STAGE 09

LOKPAL INTERFACE, INVESTIGATION LIFECYCLE AND PROCEDURAL SAFEGUARDS

LOKPAL INTERFACE, INVESTIGATION LIFECYCLE AND PROCEDURAL SAFEGUARDS

LOKPAL ROUTE COMPLAINT SCRUTINY

PRELIMINARY INQUIRY OR INVESTIGATION UNDER LOKPAL ACT

CVC/CBI OR STATUTORY WINGS AS ASSIGNED

REPORTS AND DIRECTIONS WITHIN THE ACT.

INVESTIGATION LIFECYCLE SOURCE INFORMATION/COMPLAINT

JURISDICTION AND APPROVAL SCREEN

PRELIMINARY VERIFICATION WHERE LAW PERMITS

LOKPAL ROUTE complaint scrutiny → preliminary inquiry or investigation under Lokpal Act

CVC/CBI or statutory wings as assigned → reports and directions within the Act.

INVESTIGATION LIFECYCLE source information/complaint → jurisdiction and approval screen

preliminary verification where law permits → FIR/regular case

evidence collection → sanction question → final police report

CONSTITUTIONAL BASIS / ARTICLE

- LOKPAL ROUTE complaint scrutiny → preliminary inquiry or investigation under Lokpal Act
- CVC/CBI or statutory wings as assigned → reports and directions within the Act.
- INVESTIGATION LIFECYCLE source information/complaint → jurisdiction and approval screen
- preliminary verification where law permits → FIR/regular case

POWER / PROCEDURE

- evidence collection → sanction question → final police report
- prosecution → trial → judgment.
- CBI v. Thommandru Hannah Vijayalakshmi (2021) preliminary inquiry is not mandatory before every corruption FIR
- criminal-procedure and corruption-law requirements control.

CHECK / LIMIT

- SAFEGUARDS lawful approval
- search and arrest standards disclosure and fair trial
- judicial review
- presumption of innocence.

FEDERAL / RIGHTS IMPACT

- FIR, charge sheet, vigilance advice and sanction are not findings of guilt.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: FIR, charge sheet, vigilance advice and sanction are not findings of guilt.

10

STAGE 10

CVC, CBI, LOKPAL, NIA AND STATE POLICE: POWER-TYPE COMPARISON

CVC, CBI, LOKPAL, NIA AND STATE POLICE

POWER-TYPE COMPARISON

CVC STATUTORY VIGILANCE SUPERVISION AND ADVICE

NO GENERAL POLICE POWER.

DSPE EXECUTIVE ORGANISATION + STATUTORY POLICE POWERS

CONSENT AND OFFENCE CONTROLS.

LOKPAL STATUTORY OMBUDSMAN AND COMPLAINT-ROUTING AUTHORITY FOR COVERED PUBLIC

NIA STATUTORY NATIONAL-SECURITY INVESTIGATION UNDER NIA ACT AND SCHEDULED-OFFENCE

CVC statutory vigilance supervision and advice

CBI / DSPE executive organisation + statutory police powers

no general police power.

consent and offence controls.

CONSTITUTIONAL BASIS / ARTICLE

- CVC statutory vigilance supervision and advice
- no general police power.
- CBI / DSPE executive organisation + statutory police powers

POWER / PROCEDURE

- consent and offence controls.
- LOKPAL statutory ombudsman and complaint-routing authority for covered public functionaries.
- NIA statutory national-security investigation under NIA Act and

CHECK / LIMIT

- STATE POLICE / ACB
- State police power and territorial responsibility under ordinary criminal law.
- DEPARTMENTAL CVO internal prevention, scrutiny and disciplinary-vigilance coordination.

FEDERAL / RIGHTS IMPACT

- COURT authorises, reviews, tries and finally determines guilt.
- TRAP administrative placement, vigilance supervision and police command are different relationships.

- INVESTIGATION LIFE-CYCLE source information/complaint → jurisdiction and approval screen
- preliminary verification where law permits → FIR/regular case

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: FIR, charge sheet, vigilance advice and sanction are not findings of guilt.

10

STAGE 10

CVC, CBI, LOKPAL, NIA AND STATE POLICE: POWER-TYPE COMPARISON

CVC, CBI, LOKPAL, NIA AND STATE POLICE

POWER-TYPE COMPARISON

CVC STATUTORY VIGILANCE SUPERVISION AND ADVICE

NO GENERAL POLICE POWER.

DSPE EXECUTIVE ORGANISATION + STATUTORY POLICE POWERS

CONSENT AND OFFENCE CONTROLS.

LOKPAL STATUTORY OMBUDSMAN AND COMPLAINT-ROUTING AUTHORITY FOR COVERED PUBLIC

NIA STATUTORY NATIONAL-SECURITY INVESTIGATION UNDER NIA ACT AND SCHEDULED-OFFENCE

CVC statutory vigilance supervision and advice		no general police power.	
CBI / DSPE executive organisation + statutory police powers		consent and offence controls.	
CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- CVC statutory vigilance supervision and advice - no general police power. - CBI / DSPE executive organisation + statutory police powers	- consent and offence controls. - LOKPAL statutory ombudsman and complaint-routing authority for covered public functionaries. - NIA statutory national-security investigation under NIA Act and scheduled-offence framework.	- STATE POLICE / ACB - State police power and territorial responsibility under ordinary criminal law. - DEPARTMENTAL CVO internal prevention, scrutiny and disciplinary-vigilance coordination.	- COURT authorises, reviews, tries and finally determines guilt. - TRAP administrative placement, vigilance supervision and police command are different relationships.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP administrative placement, vigilance supervision and police command are different relationships.			

11

STAGE 11

CONTROLLING CASES, CAGED-PARROT CRITICISM, REFORM AND ANSWER SYNTHESIS

CONTROLLING CASES, CAGED-PARROT CRITICISM, REFORM AND ANSWER SYNTHESIS

VINEET NARAIN V. UNION OF INDIA (1997) INSTITUTIONAL SAFEGUARDS

ALOK KUMAR VERMA V. UNION OF INDIA (2019) STATUTORY

DR JAYA THAKUR V. UNION OF INDIA (2023) CURRENT

"CAGED PARROT" JUDICIAL CRITICISM OF PERCEIVED EXECUTIVE INFLUENCE IN

NOT A STATUTORY STATUS, DOCTRINE OR LICENCE FOR JUDICIAL

REFORM DEDICATED LAW WITH FEDERAL SAFEGUARDS + PREDICTABLE CONSENT

PROFESSIONAL CADRE AND BUDGET

Vineet Narain v. Union of India (1997) institutional safeguards, Director tenure and statutory CVC trajectory.

Alok Kumar Verma v. Union of India (2019) statutory committee safeguard constrained removal of Director's

Dr Jaya Thakur v. Union of India (2023) current extension framework upheld; extension remains conditional

"CAGED PARROT" judicial criticism of perceived executive influence in 2013

not a statutory status, doctrine or licence for judicial administration of every case.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- Vineet Narain v. Union of India (1997) institutional safeguards, Director tenure and statutory CVC trajectory. - Alok Kumar Verma v. Union of India (2019) statutory committee safeguard constrained removal of Director's functions. - Dr Jaya Thakur v. Union of India (2023) current extension framework upheld; extension remains conditional, not automatic.	"CAGED PARROT" judicial criticism of perceived executive influence in 2013 - not a statutory status, doctrine or licence for judicial administration of every case. - REFORM dedicated law with federal safeguards + predictable consent protocol	- professional cadre and budget → transparent case allocation - timely sanctions → parliamentary system review + judicial accountability. - PYQ SPINE	2021 State consent and federalism 2026 controlled institutional matching. - VERDICT operational autonomy must be paired with legality, federal restraint and answerable coercive power.
ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: VERDICT operational autonomy must be paired with legality, federal restraint and answerable coercive power.			

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

ADJACENT ENFORCEMENT BODIES AND DEEPER DESIGN

[LIMIT] ED, NIA, SFIO AND FIU COMPARISONS ARE USEFUL

[ANALYSIS] A DEDICATED CBI STATUTE COULD CLARIFY MANDATE, APPOINTMENT

ACCOUNTABILITY, BUT INDEPENDENCE MUST BE BALANCED BY PROSECUTORIAL AND

[LIMIT] THE "CAGED PARROT" REMARK IS INSTITUTIONAL CONTEXT, NOT

[ANALYSIS] COMPARATIVE DESIGN SHOULD SEPARATE INVESTIGATION, PROSECUTION, VIGILANCE ADVICE

BECAUSE CONCENTRATING ALL FOUR FUNCTIONS WOULD CREATE ITS OWN

OPTIONAL DOCTRINE / CASE	ADVANCED LIMIT	COMPARATIVE NUANCE
- Adjacent enforcement bodies and deeper design [LIMIT] ED, NIA, SFIO and FIU comparisons are useful only to distinguish legal source and mandate; they must not displace the CVC-CBI Core. [ANALYSIS] A dedicated CBI statute could clarify mandate, appointment, finance, reporting and - accountability, but independence must be balanced by prosecutorial and judicial checks.	[LIMIT] The "caged parrot" remark is institutional context, not a statutory holding that invalidates every CBI investigation. [ANALYSIS] Comparative design should separate investigation, prosecution, vigilance advice and adjudication - because concentrating all four functions would create its own accountability risk. [ANALYSIS] Cross-border economic crime may require coordination with ED, SFIO, FIU-IND and State	- police, but each body must remain within its own statute and notification. [LIMIT] Changing consent rosters, officeholders, investigation totals and conviction rates - require dated primary evidence and are not permanent institutional facts.
OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.		